

TROUTLY ANALYTICS, INC.

2405 South Congress Avenue · Austin, TX 78704 · (512) 555-0100

April 8, 2024

Samuel Burkenham
[address on file]

Re: Rehire Offer — Data Analyst

Dear Samuel,

Troutly Analytics, Inc. (the “Company”) is pleased to extend this offer to rejoin the Company on the terms set forth below. This letter, once countersigned by you, supersedes any prior discussions and constitutes the complete offer of rehire. Your employee identifier of record will be **TRT-0071**.

1. Position. You will be employed by the Company in the position of **Data Analyst**, reporting into the Product organization. Your day-to-day work will be assigned by the Product function and your responsibilities will include analytics support for the Company’s customer dashboards and internal reporting. You agree to devote your full business time, attention, and best efforts to the performance of your duties, and you agree not to engage in any other business activity, whether or not for compensation, that would materially interfere with your duties without the Company’s prior written consent.

2. Start Date. Your first day of employment upon rehire will be **04/22/2024**. If you are unable to begin on that date, you must notify the Company in writing at least three (3) business days in advance so that an alternative start date may be documented in an amendment to this letter.

3. Base Salary. Your annualized base salary will be **\$81,000.00**, less applicable withholdings and deductions, paid on the Company’s regular semi-monthly payroll schedule (checks on the fifteenth (15th) day and the last day of each month, with adjustment for weekends and observed holidays). Your salary will be reviewed by the Company in the ordinary course of its annual compensation review process. Nothing in this section entitles you to any specific increase, and any adjustment to your base salary must be documented in a signed writing.

4. Equity. Subject to approval by the Company’s Board of Directors, you will be recommended for a grant of stock options to purchase shares of the Company’s common stock under the Company’s then-current equity incentive plan. The size of the grant, the exercise price, the vesting commencement date, and the vesting schedule will be as approved by the Board and set forth in a separate stock option agreement between you and the Company. Your rights with respect to any equity award will be governed exclusively by that agreement and the governing plan documents, and no rights are created by this letter.

5. Benefits. Beginning on the applicable eligibility date, you will be eligible to participate in the Company’s group medical, dental, vision, and other benefit programs on the same basis as similarly situated employees, and in accordance with the eligibility and effective-date rules set forth in the current Employee Handbook and the governing plan documents. Paid time off will accrue in accordance with the Company’s then-current paid time off policy. The Company reserves the right to modify, amend, or terminate any of its benefit plans and programs at any time in its sole discretion.

6. At-Will Employment. Your employment with the Company is “at will.” This means that either you or the Company may terminate the employment relationship at any time, with or without cause and with or without prior notice, for any reason or for no reason. Nothing in this letter, in the Employee Handbook, or in any other Company document or communication constitutes a contract of employment for any specified term or a guarantee of continued employment. The at-will nature of the employment relationship may be modified only by a written agreement signed by both you and the Chief Executive Officer of the Company.

7. Confidentiality; Assignment of Inventions. As a condition of your rehire, you will sign and abide by the Company's standard Employee Confidential Information and Invention Assignment Agreement (the "CIIAA") on or before your start date. You acknowledge that during your prior period of employment with the Company you were also subject to the CIIAA and that your obligations under any then-signed agreement survived the end of that employment. By signing this letter, you reaffirm those continuing obligations, including without limitation your obligations to protect the Company's confidential information and to assign to the Company any inventions arising out of the scope of your prior employment.

8. Contingencies. This offer is contingent upon (a) the satisfactory completion of a background check conducted by or on behalf of the Company; and (b) your timely completion of the U.S. Citizenship and Immigration Services Form I-9, together with your production, no later than the third business day following your start date, of documentation sufficient to establish your identity and your authorization to work in the United States. If either contingency is not satisfied, this offer may be withdrawn, or your employment may be terminated, at the Company's sole discretion and without any obligation to you.

NOTE — Prior Employment. The Company acknowledges Samuel Burkenham's **prior employment** with Troutly Analytics, which ended on **08/25/2023**. Treatment of your prior service for purposes of tenure-based benefits (including without limitation paid-time-off accrual tier and any service-anniversary program) will be determined under the Company's then-current Employee Handbook rehire-service provision, applied to the dates of record reflected in the Company's personnel archive. No specific service-date determination is made or promised by this letter; the applicable handbook rule and the personnel archive together establish that treatment.

9. Acceptance. To accept this offer, please sign and date this letter in the space provided below and return a countersigned copy to the Company no later than **04/19/2024**. This letter, together with the CIIAA and the governing equity plan documents once executed, constitutes the entire agreement between you and the Company with respect to the subject matter hereof, and supersedes all prior discussions and representations, whether oral or written. This letter is governed by the laws of the State of Texas without regard to its conflict-of-laws principles.

We are pleased to welcome you back to Troutly Analytics.

Sincerely,

For the Company:

Michael Labeson _____

Michael Labeson
Chief Executive Officer and Co-founder
Troutly Analytics, Inc.
Date signed: **04/08/2024**

ACCEPTED AND AGREED:

I have read and understood the terms of this rehire offer letter and accept employment with Troutly Analytics, Inc. on the terms and conditions set forth above.

Samuel Burkenham _____

Samuel Burkenham
Employee ID: TRT-0071
Date countersigned: **04/12/2024**